OPEN SOCIETY
JUSTICE INITIATIVE

PRESS RELEASE

Syrians Seek UN Rights Ruling against Russia for 2019 Hospital Attacks

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NEW YORK—The Russian Federation has been accused before the UN Human Rights Committee in Geneva of carrying out a deliberate attack on a hospital in Syria—in a legal action that highlights Moscow's repeated use of military force against health care facilities in Syria, where its forces have been supporting the regime of President Bashar al-Assad.

A complaint before the committee, filed on May 1, focuses on a series of air strikes on Kafr Nabl Surgical Hospital in Idlib province on May 5, 2019.

It accuses the Russian Air Force of killing two civilians and endangering the lives of all those working in and using the hospital at the time—medical practitioners, patients, support staff, and visitors.

The complaint has been brought before the Committee by a Syrian man whose two cousins were killed by the attack, and by Hand in Hand for Aid and Development, the humanitarian NGO that was supporting the hospital at the time. Hand in Hand is representing the interests of the patients of the hospital.

The applicants are represented by lawyers of the Open Society Justice Initiative, with Philip Leach, professor of human rights law at the UK's Middlesex University as co-counsel.

The evidence being presented to the committee includes a detailed account of the Russian Air Force attack on the hospital at Kafr Nabl, and on three other hospitals near Kafr Nabl in just 12 hours on May 5–6, 2019. There was no fighting near the hospital at the time of the attack, which lay in opposition-controlled territory some 20 kilometers away from the front line.

The complaint draws on a wealth of video and audio recordings made at the time, as well as eyewitness accounts that point to direct Russian Air Force
material includes observations of Russian aircraft in the area at the relevant time, and a
and Russian ground control, authorizing the release of aerial munitions and confi
ise times that strikes were captured on video. Some of the material included as evide
ecial report published on October 13, 2019.

Fadi a
orce attack on Kafr Nabl hospital was a well-documented atrocity that was part of a syst
sition-held territory in Syria in 2019. The coordinates of the hospital had been

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shared with Russia by the UN under the UN Deconfliction Mechanism. Syrians are looking to the Human Rights Committee to show us some measure of redress by acknowledging the truth of this brutal attack, and the suffering caused."

James A. Goldston, executive director of the Justice Initiative, said: "This complaint before a preeminent international human rights tribunal exposes the Russian government and armed forces' deliberate strategy of targeting health care in clear violation of the laws of war. It must remind us all that attacks on protected health care facilities—whether in Syria, Sudan, Ukraine, or the Gaza Strip—are an abomination that must never be normalized."

The complaint is being supported by expert analyses prepared by Syrian Archive and Physicians for Human Rights. The Syrian humanitarian group White Helmets assisted with collecting evidence. Physicians for Human Rights has documented 604 attacks against medical facilities in Syria since 2011, the overwhelming majority conducted by Syrian and Russian forces.

Houssam al-Nahhas, MD, Middle East and North Africa Researcher for Physicians for Human Rights, said: "Widespread and systematic attacks on health care in Syria are part of a strategy implemented by the Syrian and Russian governments, devastating the country's health care system. Despite the seriousness of these crimes, no perpetrators have ever faced accountability. We hope this landmark case helps to end the impunity for attacks on health care in Syria and serve as a warning to perpetrators in other conflicts around the world."

The Geneva-based Human Rights Committee is a body of 18 independent experts that monitors implementation of the International Covenant on Civil and Political Rights (ICCPR), which has been signed by 173 countries. Under the ICCPR's Optional Protocol, which the Russian Federation signed in 1990, individuals can bring complaints against signatory states before the committee over rights violations.

The complaint accuses the Russian Federation of perpetrating a clear and serious violation of International Humanitarian Law by deliberately attacking a protected medical facility, in breach of the Right to Life under the ICCPR. The attack killed two brothers and endangered the lives of everyone working in and using the busy hospital. The hospital was operating normally at the time of the attack and neither Russia nor Syria provided any warning before the attack. This is not the only time the facility was targeted: Kafr Nabl hospital was attacked 13 times between 2014-2019.

From a legal perspective, a decision against Russia would provide significant new jurisprudence on the extraterritorial obligations of states in armed conflict, and would pave the way for progressive decisions from other human rights bodies and courts.

The Open Society Justice Initiative is part of the Open Society Foundations, and pursues strategic litigation on a range of issues including advancing human rights and advancing the rule of law. Its work on Syria has included supporting efforts to bring top Syrian officials and leaders to trial before national courts in Europe for crimes against humanity committed in Syria.

Video: The Attack on Kafr Nabl Hospital (English) (Arabic)

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Ru ia in 2019. A legal filing, brought on
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—p in Syria by Russian forces.

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French Magistrates Seek Arrest of Syria's Al-Assad and Associates for Chemical Weapons Attacks

Arrest warrants for Al-Assad, his brother, and two other senior officials have been issued after an extensive investigation into chemical weapons attacks on civilians in Douma and Eastern Ghouta in August 2013 that killed more than 1,000 people.

NOVEMBER 15, 2023

PRESS RELEASE

New Complaint Filed in Sweden Against High-Ranking Assad Officials for Chemical Weapons Attacks In Syria

Criminal complaints on the Syrian government's chemical weapons attacks on Khan Shaykhun and Ghouta in 2017 and 2013 have been filed before the Swedish police's specialized war crimes unit. The complaint was spearheaded by Syrian victims and Civil Rights Defenders (CRD), Syrian Center for Media and Freedom of Expression (SCM), Syrian Archive, and the Justice Initiative.

APRIL 19, 2021

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